

Colorado Record Sealing

Agent Training Reference

participant/case info review zone

A complete operational knowledge base for clearing criminal records in Colorado: the two parallel sealing tracks (petition-based under HB19-1275 and automatic Clean Slate under SB22-099 / HB24-1133), eligibility, the § 24-72-706 exclusions, waiting periods, procedure, the JDF forms, and record requests.

Coverage	State of Colorado (district, county, or municipal court where the case was handled; statewide JDF forms)
Primary statutes	C.R.S. §§ 24-72-701 to 708 (sealing); § 13-3-117 (Clean Slate automatic mechanics); § 19-1-306 (juvenile expungement)
Controlling changes	HB19-1275 petition overhaul; SB22-099 Clean Slate (auto-sealing), expanded by HB24-1133; Phase 1 July 2024, Phase 2 July 2025
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, including the HB24-1133 Clean Slate expansion

VERIFY BEFORE RELYING

Colorado runs TWO parallel sealing systems and the agent must not conflate them. The PETITION route (HB19-1275) is faster but requires filing JDF 417 or 612, a fee, and service on the DA. The AUTOMATIC Clean Slate route (SB22-099, mechanics in § 13-3-117, expanded by HB24-1133) requires no filing but is slower and phases in over time. Waiting periods, the § 24-72-706 exclusion list, and the all-or-nothing rule changed materially under these bills. The agent must verify the current track, waiting period, and eligibility before relying on any rule here.

How the agent should use this document

Colorado clears adult records by SEALING (not expungement; expungement is reserved for juveniles under § 19-1-306). The agent routes by (1) disposition — non-conviction vs. conviction; (2) offense class measured against the § 24-72-706 exclusion list; and (3) track — whether the record qualifies for the faster petition route, the free automatic Clean Slate route, or both. Always run the ALL-OR-NOTHING check: a single ineligible conviction in a case can block sealing of the whole case.

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signature/date review zone

Statutory shorthand used throughout

Term	Meaning
Sealing participant/case info review zone	Adult record relief in Colorado (C.R.S. §§ 24-72-701 to 708); record hidden from public, denial generally permitted
Expungement	Reserved for JUVENILE records (§ 19-1-306); JDF 302. Do not use 'expungement' for adult relief
HB19-1275	2019 petition-route overhaul; set the tiered petition waiting periods
SB22-099	Clean Slate Act — automatic sealing; mechanics in § 13-3-117
HB24-1133	Expanded Clean Slate to additional felonies; Phase 2 (Class 4/5/6) July 2025
All-or-nothing	One ineligible conviction in a case can block sealing of the entire case
CBI	Colorado Bureau of Investigation — holds statewide criminal history; named in seal orders
JDF	Judicial Department Form — statewide court forms (417 non-convictions, 612 convictions, 302 juvenile)

1. Eligibility rules

Two tracks, considered by disposition, offense class, and goal.

Track 1 — Petition-based sealing (HB19-1275). The faster route. The person files JDF 417 (non-convictions) or JDF 612 (convictions) once the tiered waiting period has run, pays the fee (waivable), and serves the District Attorney. Available for non-convictions (dismissal, acquittal, completed diversion, arrest with no charges) and for eligible convictions not barred by § 24-72-706.

Track 2 — Automatic Clean Slate sealing (SB22-099, § 13-3-117, expanded by HB24-1133). No filing required. The State Court Administrator compiles quarterly eligibility lists; the DA has 45 days to object; CBI and agencies then seal. Slower waiting periods than the petition route, phasing in: Phase 1 (July 2024) non-convictions, petty, misdemeanors, civil infractions; Phase 2 (July 2025) Class 4/5/6 felonies.

Track 3 — Juvenile expungement (§ 19-1-306). A separate remedy with its own form (JDF 302) and rules; minors route here, not to the adult sealing statutes.

AGENT GUIDANCE

Route by disposition first: non-conviction → JDF 417; eligible conviction → JDF 612; juvenile → JDF 302 expungement. When a record qualifies on BOTH tracks, tell the user the petition route is years faster but costs a fee and effort; Clean Slate is free but slower and automatic.

2. Waiting periods

The most distinctive part of Colorado: the two tracks run different clocks. Both measure from final disposition or release from supervision, whichever is later.

Offense level	Petition (HB19-1275)	Automatic (Clean Slate)
Civil infraction signature/date review zone	1 year	4 years
Petty / petty drug offense	1 year	7 years

Class 2/3 misdemeanor; drug misdemeanor	2 years	7 years
Class 1 misdemeanor	3 years	7 years
Class 4/5/6 felony; Level 3/4 drug felony	3 years	10 years (Phase 2, July 2025)
Other eligible felonies	5 years	10 years
Non-conviction (dismissal/acquittal)	Immediate (simplified)	Phase 1 (July 2024)

The petition route's tiers come from HB19-1275; the automatic route's longer waits come from SB22-099 as expanded by HB24-1133. All clocks run from final disposition or completion of supervision, whichever is later — outstanding supervision means the clock has not started.

AGENT GUIDANCE

Compute every wait from the LATER of final disposition or release from supervision.

If the user wants relief fast and the record is eligible, steer to the petition route; if they want zero effort and can wait, Clean Slate will reach it automatically.

3. Disqualifying / ineligible offenses

The § 24-72-706 exclusion list is the hard bar, and the all-or-nothing rule does much of the work.

The all-or-nothing rule. If one conviction in a case is not eligible for sealing, no conviction in that case may be sealed. This is the single biggest Colorado trap — map every charge in the case before declaring eligibility.

Categorically excluded (§ 24-72-706 and related):

DUI / DWAI convictions — never sealable (narrow exceptions: UDD underage-drinking and juvenile).

Offenses involving unlawful sexual behavior (§ 16-22-102(9)) and sexual offenses (§§ 18-3-401 to 418).

Domestic violence (§ 18-6-800.3) and crimes of violence (§ 18-1.3-406).

Class 1, 2, and 3 felonies (with narrow marijuana-cultivation carve-outs), and Level 1 drug felonies.

Felonies enumerated in the Victim's Rights Act (§ 24-4.1-302(1)); child abuse (§ 18-6-401).

Traffic-only cases of Class 1/2 misdemeanor traffic offenses or Class A/B traffic infractions.

VERIFY BEFORE RELYING

The § 24-72-706 exclusion list is enumerated by Criminal Law Article section and is reproduced verbatim in JDF 612 Section 8 — the agent should map every charge in the case to its statute and apply the all-or-nothing rule across the whole case before declaring eligibility. Verify the current list and the Clean Slate phase status before relying.

4. Case outcome rules

Disposition and offense class determine the track, the wait, and the form. This is the agent's primary routing logic for Colorado.

Case outcome	Remedy / track	Form	Wait
Arrest, no charges filed	Seal (auto after 1 yr; or petition)	JDF 417	1 yr / auto

Dismissal / acquittal	Seal (simplified, immediate)	JDF 417	Immediate
Completed diversion	Seal (non-conviction)	JDF 417	On completion
Eligible misdemeanor conviction	Seal (petition or auto)	JDF 612	2–3 yr / 7 yr
Eligible felony conviction	Seal (petition or auto)	JDF 612	3–5 yr / 10 yr
Juvenile adjudication	Expungement (separate track)	JDF 302	Per § 19-1-306
DUI/DWI; sex; DV; Class 1–3 felony	Not sealable	—	—

Effect of relief: a sealed Colorado record is removed from public access, and the person may generally deny the arrest or conviction occurred, though certain agencies and licensing bodies retain limited access. Sealing is not destruction.

AGENT GUIDANCE

Tell users plainly: Colorado SEALS adult records (it does not expunge them); juvenile records are EXPUNGED. Run the all-or-nothing check on every multi-charge case before telling a user they are eligible.

5. Required forms

Colorado uses statewide Judicial Department **JDF** forms, filed in the court that handled the case. Clean Slate automatic sealing requires no form from the person.

Form	Use
JDF 417 — Request to Seal Arrest & Criminal Records (No Charges Filed)	Non-conviction records: arrest with no charges, dismissals, acquittals, completed diversion. C.R.S. § 24-72-704. Filed where the records are held.
JDF 612 — Motion to Seal Conviction Records	Eligible convictions under § 24-72-706. Attach a recent CBI criminal-history report; filing fee (waivable). Served on the District Attorney.
Proposed Order to Seal (JDF order forms)	The order the judge signs (e.g. JDF 418 grant on the arrest track); on entry, named agencies (CBI, courts, arresting agency) seal their records.
JDF 302 — juvenile record expungement (separate track)	Juvenile records use EXPUNGEMENT, not sealing; noted here so the agent routes minors correctly. C.R.S. § 19-1-306.
Clean Slate automatic sealing	No form. The State Court Administrator compiles quarterly eligibility lists; DAs have 45 days to object; CBI and agencies then seal.

Each petition identifies the petitioner, the case and court, the offense and level, the disposition, and the statutory basis, and pairs with a proposed order for the judge. JDF 612 requires the attached CBI report and is served on the prosecutor, who (with any victim) may object and trigger a hearing; for the lowest-level offenses the court may seal without a hearing.

AGENT GUIDANCE

Pick the form by disposition: JDF 417 for non-convictions, JDF 612 for convictions; route juveniles to JDF 302 expungement instead.

These are the official statewide JDF forms — LegalEase now has faithful field-for-field HTML replicas of JDF 302/417/612 and the order set (418/419/435/614/613).

6. Filing instructions

Petition sealing is filed in the court that handled the case; automatic sealing needs no filing.

- 1. Get the record.** Pull the case from Colorado courts and, if needed, a CBI criminal-history report to confirm each charge, its level, the disposition, and supervision-completion dates.
- 2. Confirm track and eligibility.** Petition vs. automatic; offense class against the § 24-72-706 exclusions; the waiting period; and the all-or-nothing rule across the whole case.
- 3. Complete the JDF petition** (417 for non-convictions, 612 for convictions) with the case details and statutory basis, plus the proposed order; attach the CBI report for JDF 612.
- 4. File** in the district/county/municipal court that handled the case and pay the fee (waivable). Non-conviction sealing is low- or no-cost; conviction sealing carries a filing fee.
- 5. Service.** The DA is served on JDF 612; the prosecutor (and any victim) may object within the statutory window.
- 6. Hearing or grant.** If there is an objection the court may hold a hearing; for the lowest-level offenses it may seal on the papers.
- 7. Order and execution.** On a granted order, named agencies (CBI, courts, arresting agency) seal the records. Keep a copy of the signed order.

AGENT GUIDANCE

Venue is the court that handled the case. A person with cases in different counties files separately in each.

If the record is Clean Slate-eligible and the user can wait, no filing is needed at all — confirm the phase and let the automatic process reach it.

7. Court-specific quirks

The features most likely to surprise.

- Sealing, not expungement.** Adult relief is SEALING; only juvenile records are expunged. Using the wrong term confuses users and courts.
- The all-or-nothing rule.** One ineligible conviction in a case blocks sealing of every charge in that case — the biggest Colorado pitfall.
- Two tracks, different clocks.** The petition route is years faster than Clean Slate; advise on the speed-vs-effort trade-off when a record qualifies on both.
- DUI/DWAI is the classic disappointment.** A DUI/DWAI conviction is never sealable (narrow UDD/juvenile exceptions only).
- Clean Slate phasing.** Phase 1 (July 2024) reached non-convictions, petty, misdemeanors, civil infractions; Phase 2 (July 2025) reached Class 4/5/6 felonies — verify the user's record against the current phase.
- CBI report required for convictions.** JDF 612 must attach a recent CBI criminal-history report.

AGENT GUIDANCE

Lead every Colorado conviction analysis with the all-or-nothing rule and the § 24-72-706 exclusions; those two determine most outcomes.

Check the Clean Slate phase — a record may now seal automatically that did not a year ago.

8. Fee information

Colorado petition sealing carries a court filing fee that is waivable; automatic sealing is free.

Item	Amount	Note
JDF 417 non-conviction sealing	Low / none	Simplified process for dismissals/acquittals
JDF 612 conviction sealing	Filing fee	Waivable on a fee-waiver motion
Clean Slate automatic sealing	\$0	No filing, no fee
CBI criminal-history report	CBI fee	Required attachment for JDF 612
Attorney fees (if represented)	Varies	Not required; clinics and self-help assist free

VERIFY BEFORE RELYING

Filing-fee amounts and waiver procedures change; the agent should verify the current JDF 612 filing fee and fee-waiver process at the time of advising rather than quoting a fixed figure from memory.

9. Criminal history (CBI) request process

Reviewing the record first confirms each disposition, the offense levels, and the supervision-completion dates that start the clock.

A. Court record. Colorado courts' case access confirms case dispositions and is the first stop to group charges by case for the all-or-nothing rule. A sealed case is removed from public access.

B. Statewide history — CBI. The Colorado Bureau of Investigation holds the official statewide criminal history; a name-based or fingerprint-based report can be requested for a fee and is the required attachment for JDF 612.

C. Federal — FBI Identity History Summary. For records that may extend beyond Colorado, the FBI fingerprint-based summary is the federal equivalent; Colorado relief reaches Colorado records only.

AGENT GUIDANCE

Frame the CBI report as the official history and the required JDF 612 attachment; use the court record to group charges by case for the all-or-nothing rule.

10. Sample petitions and completed examples

Colorado relief is filed on statewide JDF petitions in the court that handled the case. Names, dates, and identifiers below are fictional and illustrative.

Example A — Motion to Seal Conviction Records (JDF 612, § 24-72-706)

DISTRICT COURT, EL PASO COUNTY, COLORADO

PEOPLE OF THE STATE OF COLORADO v. JORDAN K. MILLS Case No. 2021CR001934
MOTION TO SEAL CONVICTION RECORDS (C.R.S. 24-72-703 & 706)

1. Defendant: Jordan K. Mills; DOB 02/09/1988.
 2. On 05/12/2021 defendant was convicted of theft, a class 2 misdemeanor, in this case.
 3. Supervision terminated 05/12/2022; more than the applicable waiting period has elapsed (HB19-1275 tier).
 4. ALL-OR-NOTHING: every charge in this case is eligible; none is barred by the 24-72-706 exclusion list (Section 8).
 5. A verified CBI criminal-history report (within 20 days) is attached.
 6. No restitution is owed; no action is pending.
- WHEREFORE defendant requests an Order sealing all records of this case. (Copy served on the District Attorney.)

Examples B, C & D — Other routes

B. NON-CONVICTION SEALING (JDF 417, 24-72-704):

An arrest with no charges, a dismissal, an acquittal, or a completed diversion is sealed on the non-conviction track; dismissals/acquittals use the simplified immediate process.

C. CLEAN SLATE AUTOMATIC SEALING (SB22-099, 13-3-117):

No filing. The State Court Administrator lists eligible records quarterly; the DA has 45 days to object; CBI and agencies then seal. Slower than the petition route but free.

D. ALL-OR-NOTHING ILLUSTRATION:

If a case produced two convictions -- one eligible theft and one ineligible DUI -- NEITHER can be sealed, because one ineligible conviction blocks sealing of the entire case.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Colorado statutes and common practice and is not legal advice. Colorado overhauled petition sealing under HB19-1275 and built automatic Clean Slate sealing under SB22-099 (mechanics in § 13-3-117), expanded by HB24-1133; the agent must verify the current text of C.R.S. §§ 24-72-701 to 708, the § 24-72-706 exclusion list, the two-track waiting periods, the Clean Slate phase status, and the JDF forms and fees before relying on any rule here.